

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

STEVEN HALE,

Plaintiff,

- against -

THE CITY OF NEW YORK and JASMIN RODRIGUEZ,

Defendants.

-----X

Index No.

Plaintiff
designates
Bronx County as
place of trial.

The basis of the
venue is the
location of
occurrence.

S U M M O N S

Plaintiff resides at:
Bronx, New York
County of Bronx

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
December 31, 2018

Attorneys for Plaintiff
The Meyers Law Firm
STEVEN HALE
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 252-1212

The City of New York, 100 Church Street, New York, N.Y. 10007
JASMIN RODRIGUEZ, c/o TD DT 12, Bronx, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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Index No.

STEVEN HALE,

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK and JASMIN RODRIGUEZ,

Defendants.

-----X

Plaintiff, **STEVEN HALE**, complaining of the defendants,
by his attorneys, The Meyers Law Firm, hereby sets forth and
alleges, upon information and belief, as follows:

PRELIMINARY STATEMENT

1. That, at all times hereinafter mentioned, and on
October 16, 2017, the plaintiff, **STEVEN HALE**, was and still is a
resident of the County of Bronx, City and State of New York.

2. That, at all times hereinafter mentioned, and on
October 16, 2017, the defendant, **THE CITY OF NEW YORK**, was and
still is a domestic municipal corporation, duly organized and
existing under and by virtue of the laws of the State of New
York.

3. That, at all times hereinafter mentioned, and on

October 16, 2017, the defendant, **JASMIN RODRIGUEZ**, was and still is a resident of the City and State of New York.

4. That, the plaintiff, **STEVEN HALE**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY OF NEW YORK**; plaintiff's Notice of Claim was served on December 19, 2017, within ninety (90) days of the date that the within cause of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **STEVEN HALE**, testified at an oral examination pursuant to the General Municipal Law on November 1, 2018; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

5. That, on October 16, 2017, at approximately 8:30 a.m. the plaintiff, **STEVEN HALE**, was present within the IRT or other subway station and platform at the corner of Third Avenue and East 149th Street, in the county of the Bronx, City and State of New York.

6. That, on October 16, 2017, the plaintiff, **STEVEN HALE**, was falsely imprisoned by the defendants, **THE CITY OF NEW YORK**, their officers, agents and/or employs and others including but not limited to defendant **JASMIN RODRIGUEZ**.

7. That, on October 16, 2017, the plaintiff, **STEVEN HALE**, was viciously, abusively assaulted by the defendants, **THE**

CITY OF NEW YORK, their officers, agents and/or employs and others including but not limited to **JASMIN RODRIGUEZ**.

8. That, on October 16, 2017, the plaintiff, **STEVEN HALE**, was viciously, abusively battered by the defendants, **THE CITY OF NEW YORK**, their officers, agents and/or employs and others including but not limited to **JASMIN RODRIGUEZ**.

9. That, on October 16, 2017, the plaintiff, **STEVEN HALE**, was falsely arrested by the defendants, **THE CITY OF NEW YORK**, their officers, agents and/or employs and others including but not limited to defendant **JASMIN RODRIGUEZ**.

10. That, on October 16, 2017, the plaintiff, **STEVEN HALE**, had his civil rights violated by the defendants, **THE CITY OF NEW YORK**, their officers, agents and/or employs and others including but not limited to defendant **JASMIN RODRIGUEZ**.

11. That, on October 16, 2017, the plaintiff, **STEVEN HALE**, without any provocation and for no reason whatsoever, was called a racial slur, epithet or other derogatory word or phrase including but limited to the "n" word, along with other curse and/or derogatory words, by the defendants, **THE CITY OF NEW YORK**, their officers, agents and/or employs and others including but not limited to defendant **JASMIN RODRIGUEZ**; the use of such racial slurs, epithets or other derogatory words or phrases including but limited to the "n" word or others, along with other curse and/or derogatory words which have historically been used to insult,

demean and degrade persons of 'color' or other ethnic or protected groups based upon race, religious beliefs, sex, sexual orientation, etc., should not and will not be tolerated, especially from those who are sworn to protect and serve, in violation of the federal and state civil and other rights of the plaintiff, **STEVEN HALE** and the citizens of the CITY OF NEW YORK and others.

11. That, on October 16, 2017, although the plaintiff, **STEVEN HALE**, did not display any physically threatening behavior towards the defendants **THE CITY OF NEW YORK**, their officers, agents and/or employs and others including but not limited to defendant **JASMIN RODRIGUEZ** or show in any way whatsoever that physical force was necessary, the plaintiff **STEVEN HALE** was nonetheless, beaten, assaulted, kicked, punched, pulled, pushed, thrown to the ground, thrown against various surfaces and otherwise beaten, injured and maimed.

12. That, on October 16, 2017, although the plaintiff, **STEVEN HALE** did not display any physically threatening behavior towards the defendants **THE CITY OF NEW YORK**, their officers, agents and/or employs and others including but not limited to defendant **JASMIN RODRIGUEZ** or show in any way whatsoever that physical force was necessary was physically and with great force, held against his will and as such falsely imprisoned, for no reason whatsoever.

13. That, on October 16, 2017, although the plaintiff, STEVEN HALE did not display any physically threatening behavior towards the defendants **THE CITY OF NEW YORK**, their officers, agents and/or employs and others including but not limited to defendant **JASMIN RODRIGUEZ** or show in any way whatsoever that physical force was necessary, was held against his will, falsely imprisoned, for no reason whatsoever used excessive force in that they used **two sets of handcuffs** causing series and permanent injuries to his wrists, ankle, hands, neck, back, extremities, head, and other physical and emotional injuries, etc.

14. That, on October 16, 2017, although the plaintiff, **STEVEN HALE** did not display any physically threatening behavior towards the defendants **THE CITY OF NEW YORK**, their officers, agents and/or employs and others including but not limited to defendant **JASMIN RODRIGUEZ** or show in any way whatsoever that physical force was necessary, was held against his will, falsely imprisoned, for no reason whatsoever used excessive force in that they used **two sets of handcuffs** causing series and permanent injuries to his wrists, hands, back. etc. causing him great physical pain and threw him to the ground, **violently propelling him to the ground**, causing series and permanent injuries to his wrists, ankle, hands, neck, back, extremities, head, and other physical and emotional injuries, etc.

15. That, on October 16, 2017, although the plaintiff, **STEVEN HALE** did not display any physically threatening behavior towards the defendants **THE CITY OF NEW YORK**, their officers, agents and/or employs and others and including but not limited to defendant **JASMIN RODRIGUEZ** or show in any way whatsoever that physical force was necessary, was held against his will, falsely imprisoned, for no reason whatsoever used such excessive physical force in that they used **two sets of handcuffs** causing series and permanent injuries to his wrists, hands, back. etc. causing him great physical pain, violently propelling and throwing him to the ground, violently shoved him into the subway platform gate, **repeatedly assaulted him**, punched him in the ribs, neck, punched him in the neck, head, stepped on his right ankles, causing series and permanent injuries to his wrists, ankle, hands, neck, back, extremities, head, and other physical and emotional injuries, etc.

16. As such, and for absolutely no reason whatsoever, the plaintiff, **STEVEN HALE**, was falsely arrested by the defendants **THE CITY OF NEW YORK**, their officers, agents and/or employs and others and including but not limited to defendant **JASMIN RODRIGUEZ**; as such, for no reason whatsoever, the defendants **THE CITY OF NEW YORK**, their officers, agents and/or employs and others and including but not limited to defendant **JASMIN RODRIGUEZ** escalated an event that did not require physical force of any kind, all in violation of plaintiff, **STEVEN HALE's** civil rights.

17. The plaintiff, **STEVEN HALE**, was never seen by a judge.

18. The plaintiff, **STEVEN HALE**, was severely injured as a result of the foregoing.

19. The plaintiff, **STEVEN HALE**, was not prosecuted by the New York County District Attorney, as prosecution was declined.

20. All charges against the plaintiff, **STEVEN HALE**, were therefore ultimately resolved in his favor.

AS AND FOR A FIRST CAUSE OF ACTION

21. That, the plaintiff, **STEVEN HALE**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 22 with the same force and effect as if hereinafter more fully set forth at length herein.

22. That, on October 16, 2017, the plaintiff, **STEVEN HALE**, was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

23. That, the plaintiff, **STEVEN HALE**, was assaulted/battered without justification and without cause and without excuse.

24. That, the assault/battery took place within the IRT subway station, on the southeast corner of Third Avenue and East 149th Street, in the County of Bronx, City and State of New York,

and other locations wherein the plaintiff, **STEVEN HALE**, was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

25. That, at all times hereinafter mentioned and on October 16, 2017, and for sometime prior thereto, defendant, **JASMIN RODRIGUEZ**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of her employment as a New York City Police Officer, and was employed by the defendant, **THE CITY OF NEW YORK**.

26. That, the aforementioned assault and battery of the plaintiff, **STEVEN HALE**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, including but not limited to **JASMIN RODRIGUEZ** while working within the scope and course of the employment with the defendant **THE CITY OF NEW YORK**.

27. That, by reason of the foregoing, the plaintiff, **STEVEN HALE**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

28. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants,

having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

29. That, by reason of the foregoing, the plaintiff, **STEVEN HALE**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

30. That, the plaintiff, **STEVEN HALE**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 28 with the same force and effect as if hereinafter more fully set forth at length herein.

31. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY OF NEW YORK** were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY OF NEW YORK**.

32. That the defendant, **THE CITY OF NEW YORK**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY OF NEW YORK**.

33. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, including but not limited to **JASMIN RODRIGUEZ** were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY OF NEW YORK**.

34. That, the defendant, **THE CITY OF NEW YORK**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **JASMIN RODRIGUEZ**, who was employed by the defendant, **THE CITY OF NEW YORK**.

35. That, by reason of the foregoing, the plaintiff, **STEVEN HALE**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

36. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

37. That, by reason of the foregoing, the plaintiff, **STEVEN HALE** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

38. That the plaintiff, **STEVEN HALE**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 37 with the same force and effect as if hereinafter more fully set forth at length herein.

39. That, on October 16, 2017, the plaintiff, **STEVEN HALE**, was caused to be detained without probable cause.

40. That, the plaintiff, **STEVEN HALE**, was detained/arrested without an arrest warrant, nor any type of warrant.

41. That, the false detainment/false imprisonment took place in front of 1285 Washington Avenue, in the County of Bronx, City and State of New York, and other locations and wherein the plaintiff, **STEVEN HALE**, was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

42. That, the aforementioned false detainment/false imprisonment of the plaintiff, **STEVEN HALE**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY OF NEW YORK**.

43. That, the aforementioned false detainment/false

imprisonment of the plaintiff, **STEVEN HALE**, was carried out by, including and not limited to, defendant, **JASMIN RODRIGUEZ**, and/or other servants, agents and/or employees of the defendant, **THE CITY OF NEW YORK**, while working within the scope and course of the employment with the defendant **THE CITY OF NEW YORK**.

44. That, by reason of the foregoing, the plaintiff, **STEVEN HALE**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

45. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

46. That, by reason of the foregoing, the plaintiff, **STEVEN HALE**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION

47. The plaintiff, **STEVEN HALE**, repeats,

reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 46, with the same force and effect as if hereinafter more fully set forth at length herein.

48. That the plaintiff, **STEVEN HALE** did not commit any illegal act, nor did the individually named defendant, **RODRIGUEZ**, have reason to believe he committed an unlawful act, either before or at the time he was falsely detained/imprisoned, assaulted and battered, excessive force was used against him; and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

49. That at all times hereinafter mentioned, the defendant, **JASMIN RODRIGUEZ**, was employed in her respective capacity by the defendant, **THE CITY OF NEW YORK** their officers, agents and/or employs and others and was acting under the color of her official capacity and her acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY OF NEW YORK**.

50. Defendant, **JASMIN RODRIGUEZ**, is being sued in her personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **JASMIN RODRIGUEZ** knew or should have known of the fact that this pattern of conduct was carried out by their agents,

servants and/or employees, the defendant, **THE CITY OF NEW YORK** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

51. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **STEVEN HALE** of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: The right of plaintiff, **STEVEN HALE**, to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **STEVEN HALE**, to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **STEVEN HALE**, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

52. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendants while acting under color of state law and within the scope of their employ.

53. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY OF NEW YORK** their officers, agents and/or employs and others, custom and/or policy of arresting individuals without probable cause.

54. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY OF NEW YORK** their officers, agents and/or employs and others, custom and/or policy of arresting minorities without probable cause.

55. That the deprivation of plaintiff, **STEVEN HALE's**, Constitutional Rights was the result of the defendant, **THE CITY OF NEW YORK**, their officers, agents and/or employs and others, custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

56. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY OF NEW YORK**, their officers, agents and/or employs and others.

57. That the detaining of plaintiff, **STEVEN HALE**, without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY OF NEW YORK**, their officers, agents and/or employs and others.

58. That the deprivation of plaintiff, **STEVEN HALE's** Constitutional rights was the result of the defendant, **THE CITY OF NEW YORK**, their officers, agents and/or employs and others, false detainment of the plaintiff **STEVEN HALE** without probable cause.

59. That the deprivation of plaintiff **STEVEN HALE's** Constitutional Rights was a result of the defendant, **THE CITY OF NEW YORK** their officers, agents and/or employs and others custom and policy in failing to discipline officers for the use of excessive force.

60. That the deprivation of plaintiff, **STEVEN HALE's** Constitutional rights was the result of the defendant, **THE CITY OF NEW YORK** their officers, agents and/or employs and others use of excessive force.

61. That the customs and/or policies adopted by the defendant, **THE CITY OF NEW YORK** their officers, agents and/or employs and others exhibited a deliberate indifference to the Constitutional rights of plaintiff, **STEVEN HALE**

62. That the customs and/or policies adopted by the defendant, **THE CITY OF NEW YORK** their officers, agents and/or employs and others in the use of certain derogatory language and other words as discussed in this document exhibited a deliberate indifference to the Constitutional rights of plaintiff, **STEVEN HALE**

62. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false detainment/imprisonment, assault and battery, as well as prosecution due to the negligence of the defendant and/or defendants, in the negligent hiring, negligent

retention, and negligent training of its various employees and/or police officers, the plaintiff, **STEVEN HALE**, was caused to have his civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

63. That, by reason of the foregoing, the plaintiff **STEVEN HALE**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and upon information and belief, her injuries are permanent in nature and effect.

64. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

65. That, by reason of the foregoing, the plaintiff, **STEVEN HALE**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, **STEVEN HALE**, demands judgment against the defendants, on the First, Second, Third, and Fourth causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of

New York; together with interest, as well as the costs,
disbursements and legal fees pursuant to 42 U.S.C. Section 1988,
of these causes of action.

Dated: New York, New York
December 31, 2018

Yours, etc.
Glenn R. Meyers
The Meyers Law Firm

Attorneys for Plaintiff,
STEVEN HALE
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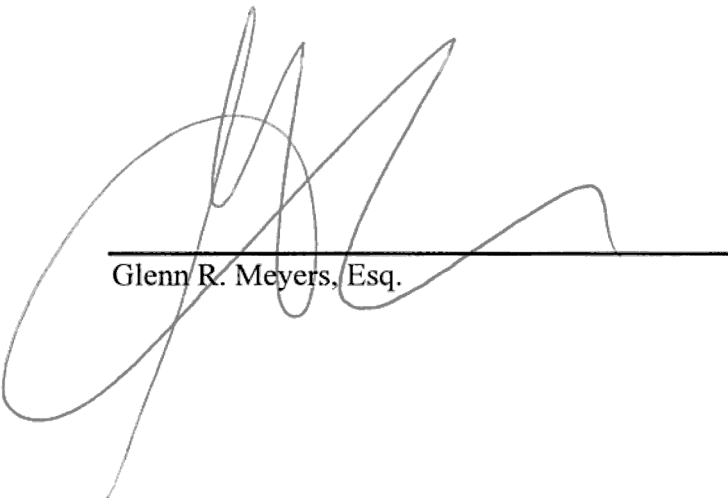
ATTORNEY VERIFICATION

I, Glenn R. Meyers, an attorney duly admitted to practice law in the State of New York,
do affirm that:

I am the principle in the law firm of The Meyers Law Firm, attorney for the Plaintiff and
I have read the **COMPLAINT** and know the contents thereof and the same are true to my
knowledge, except those matters alleged on information and belief, and as to those, I believe to
be true. I base my knowledge and belief on public records, papers and records on file with my
office, this office's investigation and conversations I had with the Plaintiff.

I make this Verification in lieu of the Plaintiff because plaintiff in the County where I
maintain my office.

Dated: New York, New York
December 31, 2018



Glenn R. Meyers, Esq.